

SENATE BILL 1743

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 20
and Section 63-6-1102, relative to wrongful death.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 20-5-106, is amended by deleting subsections (c) and (d) and substituting:

(c)

(1) Notwithstanding another law to the contrary, the right to institute and the right to collect any proceeds from a wrongful death action granted by this section to a surviving spouse shall be waived, if the children or next of kin establish the surviving spouse has abandoned the deceased spouse as described in § 36-4-101(a)(13) or otherwise willfully withdrawn for a period of three (3) years.

(2) If the period of three (3) years has passed since the time of abandonment or willful withdrawal, then there is created a rebuttable presumption that the surviving spouse abandoned the deceased spouse for purposes of this section.

(3) In an action under this section, the child or next of kin shall serve the surviving spouse with process as provided in the rules of civil procedure or by substituted, constructive, or other service as may otherwise be provided by law.

(d) As used in this section, the word "person" includes an unborn child as defined in § 63-6-1102.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.